

Vyathitmani Tripathi v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 11 January 2010 · WRIT - C No. 71438 of 2009 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A writ seeking to restrain realisation of an electricity bill on the plea that the connection was never given cannot be entertained when Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 provides a grievance remedy; the consumer may invoke that remedy in accordance with law.

FACTUAL SUMMARY

Vyathitmani Tripathi petitioned the Allahabad High Court for a mandamus directing the State and electricity authorities not to realise the electricity bill of Connection No. 037752. He produced a bill dated 29 October 2009 and contended that the connection had never been given to him and that bills were being issued incorrectly. Counsel for the respondents submitted that Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 provided a remedy for raising such a grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause 6.5 alternative remedy for billing grievance

HOLDING

A writ of mandamus restraining realisation of an electricity bill, on the plea that the connection was never given and bills are being issued incorrectly, cannot be entertained where Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 provides a remedy of raising the grievance; the consumer may invoke that remedy in accordance with law. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ seeking to restrain realisation of an electricity bill on the plea that the connection was never given cannot be entertained when Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 provides a grievance remedy; the consumer may invoke that remedy in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CONNECTION NO. 037752 WAS EVER GIVEN TO THE PETITIONER AND WHETHER THE BILL DATED 29.10.2009 WAS CORRECTLY ISSUED

Writ dismissed solely for availability of the clause 6.5 remedy; merits of the bill and connection were not examined. ¶ 1